

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1139

By: Crosswhite Hader

AS INTRODUCED

An Act relating to firearms; amending 21 O.S. 2021, Section 1280.1, which relates to the possession of firearms on school property; authorizing the transport and storage of firearms and weapons on school property under certain circumstances; updating language; clarifying liability provision; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1280.1, is amended to read as follows:

Section 1280.1.

POSSESSION OF FIREARM ON SCHOOL PROPERTY

A. It shall be unlawful for any person to have in his or her possession on any public or private school property or while in any school bus or vehicle used by any school for transportation of students or teachers any firearm or weapon designated in Section 1272 of this title, except as provided in subsection C of this section or as otherwise authorized by law.

B. For purposes of this section:

1 1. "School property" means any publicly owned property held for
2 purposes of elementary, secondary or vocational-technical education,
3 and shall not include property owned by public school districts or
4 where such property is leased or rented to an individual or
5 corporation and used for purposes other than educational;

6 2. "Private school" means a school that offers a course of
7 instruction for students in one or more grades from prekindergarten
8 through grade twelve and is not operated by a governmental entity;
9 and

10 3. "Motor vehicle" means any automobile, truck, minivan or
11 sports utility vehicle.

12 C. Firearms and weapons are allowed on school property and
13 deemed not in violation of subsection A of this section as follows:

14 1. ~~A gun or knife designed for hunting or fishing purposes kept~~
15 ~~in a privately owned vehicle and properly displayed or stored as~~
16 ~~required by law, provided such vehicle containing said gun or knife~~
17 ~~is driven onto school property only to transport a student to and~~
18 ~~from school and such vehicle does not remain unattended on school~~
19 ~~property;~~

20 2. A ~~gun~~ firearm or knife used for the purposes of
21 participating in the Oklahoma Department of Wildlife Conservation
22 certified hunter training education course or any other hunting,
23 fishing, safety or firearms training courses, or a recognized
24 firearms sports event, team shooting program or competition, or

1 living history reenactment, provided the course or event is approved
2 by the principal or chief administrator of the school where the
3 course or event is offered, and provided the ~~weapon~~ firearm or knife
4 is properly displayed or stored as required by law pending
5 participation in the course, event, program or competition;

6 ~~3.~~ 2. Weapons Firearms or weapons in the possession of any
7 peace officer or other person authorized by law to possess ~~a weapon~~
8 firearms or weapons in the performance of his or her duties and
9 responsibilities;

10 ~~4.~~ 3. A concealed or unconcealed firearm or weapon carried onto
11 private school property or in any school bus or vehicle used by any
12 private school for transportation of students or teachers by a
13 person who is licensed pursuant to the Oklahoma Self-Defense Act,
14 provided a policy has been adopted by the governing entity of the
15 private school that authorizes the possession of a firearm or weapon
16 on private school property or in any school bus or vehicle used by a
17 private school. Except for acts of gross negligence or willful or
18 wanton misconduct, a governing entity of a private school that
19 adopts a policy which authorizes the possession of a firearm or
20 weapon on private school property, a school bus or vehicle used by
21 the private school shall be immune from and not subject to liability
22 for any injuries arising from the adoption of the policy. The
23 provisions of this paragraph shall not apply to claims pursuant to
24 the Workers' Compensation Code;

1 ~~5.~~ 4. A ~~gun~~ firearm, knife, bayonet or other weapon in the
2 possession of a member of a veterans group, the ~~national guard~~
3 National Guard, active military, the Reserve Officers' Training
4 Corps (ROTC) or Junior ROTC, in order to participate in a ceremony,
5 assembly or educational program approved by the principal or chief
6 administrator of a school or school district where the ceremony,
7 assembly or educational program is being held; provided, however,
8 the ~~gun~~ firearm or other weapon that uses projectiles is not loaded
9 and is inoperable at all times while on school property;

10 ~~6.~~ 5. A ~~handgun~~ firearm carried in a privately owned motor
11 vehicle pursuant to ~~a valid handgun license authorized by the~~
12 provisions of the Oklahoma Self-Defense Act onto property set aside
13 by a public or private elementary or secondary school for the use or
14 parking of any vehicle; provided, however, ~~said handgun~~ the firearm
15 shall be stored and hidden from view in a locked motor vehicle when
16 the motor vehicle is left unattended on school property; and

17 ~~7.~~ 6. A handgun carried onto public school property by school
18 personnel who have been designated by the board of education,
19 provided such personnel either:

- 20 a. possess a valid armed security guard license as
21 provided for in Section 1750.1 et seq. of Title 59 of
22 the Oklahoma Statutes, or
23
24

b. hold a valid reserve peace officer certification as
provided for in Section 3311 of Title 70 of the
Oklahoma Statutes,

if a policy has been adopted by the board of education of the school
district that authorizes the carrying of a handgun onto public
school property by such personnel. Nothing in this subsection shall
be construed to restrict authority granted elsewhere in law to carry
firearms.

D. Any person violating the provisions of this section shall,
upon conviction, be guilty of a misdemeanor punishable by a fine of
not to exceed Two Hundred Fifty Dollars (\$250.00).

SECTION 2. This act shall become effective November 1, 2025.

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